

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Idan Falek	Team: Squad #10	CCRB Case #: 202310781	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Sunday, 10/29/2023 11:19 PM	Location of Incident: Front of 949 Ogden Avenue	18 Mo. SOL 4/29/2025	Precinct: 44
Date/Time CV Reported Mon, 10/30/2023 11:00 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 11/15/2023 5:08 AM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. PO Luis Vasquezadames	06658	973013	044 PCT
2. PO Astry Garcia	08835	972652	044 PCT
3. PO John Tobin	20289	971705	044 PCT
4. PO Richard Villar	04930	973022	044 PCT
5. PO Kevin Russo	23293	969344	044 PCT
6. SGT Jamie Roscino	05363	946195	044 PCT
7. PO Denisse Cortes	07608	974029	044 PCT
8. PO Ryan Keys	11549	974239	044 PCT
9. PO Markos Arias	21311	973225	044 PCT
10. PO Daniel Acebo	20267	973196	044 PCT

Officer(s)	Allegation	Investigator Recommendation
A . PO Astry Garcia	Abuse: Police Officer Astry Garcia improperly used her body-worn camera.	A . Within NYPD Guidelines
B . PO John Tobin	Abuse: Police Officer John Tobin improperly used his body-worn camera.	B . Within NYPD Guidelines
C . PO Luis Vasquezadames	Abuse: Police Officer Luis Vasquezadames improperly used his body-worn camera.	C . Within NYPD Guidelines
D . SGT Jamie Roscino	Abuse: Sergeant Jamie Roscino improperly used his body-worn camera.	D . Within NYPD Guidelines
E . PO Ryan Keys	Abuse: Police Officer Ryan Keys improperly used his body-worn camera.	E . Within NYPD Guidelines
F . PO Markos Arias	Abuse: Police Officer Markos Arias improperly used his body-worn camera.	F . Within NYPD Guidelines
G . PO Kevin Russo	Abuse: Police Officer Kevin Russo improperly used his body-worn camera.	G . Miscellaneous - Subject Resigned
H . SGT Jamie Roscino	Force: Sergeant Jamie Roscino pointed his gun at § 87(2)(b)	H . Within NYPD Guidelines
I . PO Ryan Keys	Abuse: Police Officer Ryan Keys drew his gun.	I . Within NYPD Guidelines
J . PO John Tobin	Abuse: Police Officer John Tobin threatened § 87(2)(b) with the use of force.	J . Within NYPD Guidelines
K . PO Luis Vasquezadames	Abuse: Police Officer Luis Vasquezadames threatened § 87(2)(b) with the use of force.	K . Within NYPD Guidelines
L . PO John Tobin	Force: Police Officer John Tobin used physical force against § 87(2)(b)	L . Within NYPD Guidelines

Officer(s)	Allegation	Investigator Recommendation
M . PO John Tobin	Force: Police Officer John Tobin used physical force against § 87(2)(b)	M . Unable to Determine
N . PO John Tobin	Force: Police Officer John Tobin restricted § 87(2)(b) breathing.	N . Unfounded
O . PO Luis Vasquezadames	Force: Police Officer Luis Vasquezadames used physical force against § 87(2)(b)	O . Unable to Determine
P . PO Luis Vasquezadames	Force: Police Officer Luis Vasquezadames tightly handcuffed § 87(2)(b)	P . Unable to Determine
Q . PO Luis Vasquezadames	Force: Police Officer Luis Vasquezadames used physical force against § 87(2)(b)	Q . Within NYPD Guidelines
R . PO Astry Garcia	Force: Police Officer Astry Garcia used physical force against § 87(2)(b)	R . Within NYPD Guidelines
S . PO John Tobin	Force: Police Officer John Tobin used physical force against § 87(2)(b)	S . Substantiated
§ 87(2)(g), § 87(4-b)		
§ 87(2)(g), § 87(4-b)		
§ 87(2)(g), § 87(4-b)		
§ 87(2)(g), § 87(4-b)		
§ 87(2)(g), § 87(4-b)		
§ 87(2)(g), § 87(4-b)		

Case Summary

On October 30, 2023, Sergeant Jamie Roscino, of the 44th Precinct, filed this complaint on behalf of § 87(2)(b) with IAB by phone. It was received at the CCRB on November 15, 2023, under IAB original log # § 87(2)(b).

On October 29, 2024, at approximately 11:19 p.m., § 87(2)(b) was in front of 949 Ogden Avenue in the Bronx when Sgt. Roscino, and Police Officers John Tobin, Luis Vasquezadames, Astry Garcia, Ryan Keys, Markos Arias, Kevin Russo, Denisse Cortes, Richard Villar, and Daniel Acebo, all of the 44th Precinct, approached the scene. PO Garcia, PO Tobin, PO Vasquezadames, Sgt. Roscino, PO Keys, PO Arias, and PO Russo improperly activated their body-worn cameras (**Allegations A, B, C, D, E, and F: Abuse of Authority – Improper Use of Body-Worn Camera, Within NYPD Guidelines; Allegation G: Abuse of Authority – Improper Use of Body-Worn Camera, Miscellaneous – Subject Resigned**). Sgt. Roscino pointed his firearm at § 87(2)(b) while PO Keys drew his firearm (**Allegation H: Force – Gun Pointed, Within NYPD Guidelines; Allegation I: Abuse of Authority – Gun Drawn, Within NYPD Guidelines**). PO Tobin and PO Vasquezadames pointed their Tasers at § 87(2)(b) (**Allegations J and K: Abuse of Authority – Threat of Force, Within NYPD Guidelines**). PO Arias assisted (subsumed into Allegation L) PO Tobin in removing § 87(2)(b) from the vehicle (**Allegation L: Force – Physical Force, Within NYPD Guidelines**). PO Tobin allegedly kicked § 87(2)(b) and allegedly restricted her breathing (**Allegation M: Force – Physical Force, Unable to Determine; Allegation N: Force – Restricted Breathing, Unfounded**). PO Vasquezadames used force with § 87(2)(b) while tightening her handcuffs (**Allegation O: Force – Physical Force, Unable to Determine; Allegation P: Force – Handcuffs too Tight, Unable to Determine**). PO Vasquezadames, PO Garcia, and PO Tobin pushed § 87(2)(b) against a police vehicle (**Allegations Q and R: Force – Physical Force, Within NYPD Guidelines; Allegation S: Force – Physical Force, Substantiated**).

§ 87(2)(g), § 87(4-b)

§ 87(2)(b) was arrested for criminal mischief, under #§ 87(2)(b) (BR 01).

The investigation obtained body-worn camera (BWC) footage from PO Garcia, PO Villar, PO Tobin, PO Vasquezadames, PO Russo, Sgt. Roscino, PO Cortes, PO Keys, PO Arias, and PO Acebo (BR 02-BR 15), the relevant portions of which will be discussed below.

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Astry Garcia improperly used her body-worn camera.

Allegation (B) Abuse of Authority: Police Officer John Tobin improperly used his body-worn camera.

Allegation (C) Abuse of Authority: Police Officer Luis Vasquezadames improperly used his body-worn camera.

Allegation (D) Abuse of Authority: Sergeant Jamie Roscino improperly used his body-worn camera.

Allegation (E) Abuse of Authority: Police Officer Ryan Keys improperly used his body-worn camera.

Allegation (F) Abuse of Authority: Police Officer Markos Arias improperly used his body-worn camera.

Allegation (G) Abuse of Authority: Police Officer Kevin Russo improperly used his body-worn camera.

Allegation (H) Force: Sergeant Jamie Roscino pointed his gun at § 87(2)(b)

Allegation (I) Abuse of Authority: Police Officer Ryan Keys drew his gun.

Allegation (J) Abuse of Authority: Police Officer John Tobin threatened § 87(2)(b) with the use of force.

Allegation (K) Abuse of Authority: Police Officer Luis Vasquezadames threatened § 87(2)(b) with the use of force.

§ 87(2)(b) stated (BR 16) that she had a physical altercation with a man that resulted in a cut on her lower lip, so she threw a brick at his vehicle. She got inside her vehicle and had been sitting for less than five seconds when she noticed a group of officers approaching her. Once she saw the officers, she exited her vehicle. PO Tobin approached her pointing either a Taser or flashlight at her. No other officer pointed anything at her. PO Tobin said that she was trying to run away from the officers, which § 87(2)(b) denied.

In PO Garcia's BWC (BR 02) at 0:00 officers are standing on the corner. At 0:28, officers look down the street. At 0:47, PO Garcia and the other officers rapidly approach the scene. At 0:59, PO Garcia activates her BWC while approaching the scene.

In PO Tobin's BWC (BR 04) at 0:46, PO Tobin approaches the scene. At 0:58, PO Tobin unholsters his Taser and points it at § 87(2)(b) who is in her vehicle. He activates his BWC at 0:59. He continues to point his Taser at her upper body as he approaches her vehicle, opens her driver door, and as she steps out of the vehicle on her own. He stops pointing his Taser as he moves her away from the vehicle at 1:12.

In PO Vasquezadames's BWC (BR 05) at 0:50, PO Vasquezadames approaches the scene. At 0:59, PO Vasquezadames activates his BWC while approaching the scene.

In PO Russo's BWC (BR 06) at 0:51, PO Russo approaches the scene. At 0:59, PO Russo activates his BWC while approaching.

In Sgt. Roscino's BWC (BR 07) at 0:39, Sgt. Roscino approaches the scene. At 0:59, Sgt. Roscino activates his BWC while pointing his firearm at § 87(2)(b).

In PO Key's BWC (BR 09) at 0:48, PO Keys approaches the scene. At 0:59, PO Keys activates his BWC while approaching and Sgt. Roscino briefly points his firearm at § 87(2)(b) who is in her vehicle. Sgt. Roscino ducks behind another vehicle and holsters his firearm at 1:05 after PO Tobin opens § 87(2)(b) driver side door.

In PO Arias's BWC (BR 10) at 0:48, PO Arias approaches the scene. At 0:59, PO Arias activates his BWC while approaching. At 1:53, there is a parked vehicle with a damaged rear driver window, front passenger window, and windshield.

In PO Villar's BWC (BR 03), at 1:00, PO Keys unholsters his firearm until 1:06, once PO Tobin opens her driver door.

In PO Cortes's BWC (BR 08) at 1:03, PO Vasquezadames approaches § 87(2)(b) in her vehicle while pointing his Taser. He continues to point it at her upper body as she exits the vehicle until PO Tobin moves her away from the vehicle at 1:15.

Sgt. Roscino stated (BR 17) that he had just completed an unrelated job, when he heard several loud crashes that sounded like glass breaking. He thought that property was damaged but did not think that a civilian was hurt, as he did not hear anyone say or yell anything before or after the sound. As he approached, he saw § 87(2)(b) smashing the rear driver window of a parked vehicle with an unknown object. § 87(2)(b) entered her vehicle, which was on and double parked in front of the vehicle she had damaged and then moved the car into gear.

Sgt. Roscino drew his firearm and pointed it at § 87(2)(b) while issuing her commands to exit the vehicle, since he had seen her manipulate the gear shift and was concerned that she could flee and hit the approaching officers. Sgt. Roscino felt that pointing his firearm was the most minimal use of force to get her to comply, which was effective because she exited the vehicle. Sgt. Roscino holstered his firearm once PO Tobin, who had drawn and pointed his Taser, was next to him.

Sgt. Roscino thought he activated his BWC when § 87(2)(b) got back into her vehicle. He did not activate prior to approaching because he was unsure what the noise was. He did not take

any police actions before activating BWC, including issuing § 87(2)(b) commands or drawing his firearm.

PO Tobin's statement (**BR 18**) was consistent with Sgt. Roscino's statement with the following exceptions. He approached to see what had caused the sound and had no initial safety concerns. He did not activate his BWC prior to approaching because he did not know what he was approaching, if it was an active scene, or if the banging indicated that a crime happened. He pointed his Taser when he saw § 87(2)(b) with blood on her face, get into her vehicle and press a button to start the engine. This indicated to him that she was trying to flee, and he was concerned that she would strike him with the vehicle. PO Tobin was unable to see her hands, what § 87(2)(b) was doing in the vehicle, and what was inside her vehicle. He opened her driver side door and ordered her to exit multiple times. She stepped out of the vehicle on her own, but PO Tobin was still concerned because she remained standing by the open driver door. PO Tobin continued to point his Taser at her until she was away from the door because he did not know what was inside her vehicle and he wanted to remove her from its vicinity.

PO Vasquezadames's statement (**BR 19**) was consistent with Sgt. Roscino and PO Tobin's with the following exceptions. He did not activate his BWC earlier because he did not know what had happened. He pointed a Taser at § 87(2)(b) and commanded her to exit the vehicle because he did not know what was inside her vehicle, he could not see her hands, and he believed she was attempting to flee. PO Vasquezadames continued to point his Taser at § 87(2)(b) after she stepped out of the vehicle because he did not see her hands.

PO Keys's statement (**BR 21**) was consistent with Sgt. Roscino's with the following exceptions. PO Key did not activate his BWC before approaching because he did not know if someone was getting hurt or if there was an immediate danger or threat. He first observed § 87(2)(b) after she exited her vehicle and stood by the driver side door. He unholstered his firearm because it was a high crime area, and he did not know if there were any imminent threats of bodily harm or death. PO Keys was also concerned because the officers had just responded to an assault with a weapon in the general area. He holstered his firearm once he determined that the use of deadly force was not necessary.

PO Garcia's statement (**BR 20**) was consistent with Sgt. Roscino's with the following exceptions. PO Garcia activated her BWC when she saw other officers approaching the scene. PO Garcia unholstered her Taser, although she did not point it, when § 87(2)(b) was in front of the damaged vehicle because she did not know what § 87(2)(b) had used to shatter the window. § 87(2)(b) walked from the damaged vehicle to her vehicle and was looking for her keys but she did not attempt to enter her vehicle. She did not recall if she saw § 87(2)(b) hands. Although § 87(2)(b) stated that she was looking for her keys, PO Garcia was concerned that § 87(2)(b) may have been reaching for a weapon inside her vehicle. There were no visible weapons inside the vehicle.

PO Arias's statement (**BR 23**) was consistent with Sgt. Roscino's with the following exceptions. He first observed § 87(2)(b) when she entered her vehicle. He activated his BWC as he approached § 87(2)(b) vehicle. There was no reason he did not activate his BWC before approaching.

PO Russo's statement (**BR 22**) was consistent with Sgt. Roscino's with the following exceptions. PO Russo did not see if § 87(2)(b) made motions to start driving the vehicle. PO Russo approached on the sidewalk and unholstered his Taser but he did not point it. He activated his BWC as he walked towards § 87(2)(b) vehicle and did not activate it before because he did not know what was happening.

The investigation did not obtain statements from PO Villar, PO Cortes or PO Acebo because it would not have influenced the disposition of the allegations.

§ 87(2)(b) arrest report (**BR 01**) noted that officers observed § 87(2)(b) throwing a brick at a parked vehicle causing damage to two windows. She walked to her vehicle and stated that she did it because a male punched her in the mouth.

Threat Resistance Injury report, #§ 87(2)(b) (BR 39) was consistent with § 87(2)(b) arrest report (BR 01).

PO Russo resigned pending permission as of 2024 (BR 41).

Patrol Guide procedure 212-123 (BR 33) states that officers are required to activate their BWC prior to engaging in any police action and that they must record any interactions that escalate to become adversarial or may hold evidentiary value.

Patrol Guide procedure 221-01 (BR 24) states that force may be used when it is reasonable to ensure the safety of a member of the service or a third person, or otherwise protect life, or when it is reasonable to place a person in custody or to prevent escape from custody. Officers must consider the following factors when determining the reasonableness of the use of force: the nature and severity of the crime/circumstances; actions taken by the subject; duration of the action; immediacy of the perceived threat or harm to the subject, and/or bystanders; whether the subject is actively resisting custody; whether the subject is attempting to evade arrest by flight; number of subjects in comparison to the MOS; subject's violent history, if known; presence of hostile crowd or agitators; subject apparently under the influence of a stimulant/narcotic which would affect pain tolerance or increase the likelihood of violence. Drawing a firearm prematurely or unnecessarily limits a uniformed member's options in controlling a situation and may result in an unwarranted or accidental discharge of the firearm. The decision to display or draw a firearm should be based on an articulable belief that the potential for serious physical injury is present.

Patrol Guide procedure 221-02 (BR 25) states that when a member of the service must gain compliance, control, or custody of an uncooperative subject, the member should comply with P.G. 221-01 and do the following: Take necessary action to protect life and personal safety of all persons present, including subjects being placed into custody and utilize de-escalation techniques when appropriate and consistent with personal safety, which may reduce or eliminate the need to use force, among other additional steps. Officers shall apply no more than the reasonable force necessary to gain control. The use of deadly force against a person can only be used to protect MOS and/or the public from imminent serious physical injury or death.

Patrol Guide procedure 221-08 (BR 26) states that a CEW (Conducted Electrical Weapon) should only be used against persons who are actively resisting, exhibiting active aggression, or to prevent individuals from physically injuring themselves or other person(s) actually present. Fleeing should not be the sole justification for using a CEW against a subject. Members should consider the severity of the offense, the subject's threat level to others, and the risk of serious injury to the subject before deciding to use a CEW on a fleeing subject.

It is undisputed that PO Garcia, PO Tobin, PO Vasquezadames, PO Russo, Sgt. Roscino, PO Keys, and PO Arias activated their BWCs after approaching the scene. § 87(2)(g)

It is therefore recommended that **Allegations A, B, C, D, E and F** be closed as **Within NYPD Guidelines**.

§ 87(2)(g) it is recommended that **Allegation G** be closed as **Miscellaneous – Subject Resigned**.

It is undisputed that Sgt. Roscino pointed his firearm, PO Keys drew his firearm, and PO Tobin and PO Vasquezadames pointed their Tasers at § 87(2)(b). It is also undisputed that § 87(2)(b) threw an object at a vehicle that was heavy or sharp enough to shatter the windows, then got into her vehicle. § 87(2)(g)

It is therefore recommended that **Allegations H, I, J and K** be **Within NYPD Guidelines**.

Allegation (L) Force: Police Officer John Tobin used physical force against § 87(2)(b)

§ 87(2)(b) stated (BR 16) that PO Tobin told her to place her hands behind her back, so she turned around. He placed a handcuff on one of her hands, at which point he was “roughing her up” and “tussling” with her. PO Tobin told her to calm down and she let him put the handcuffs on her, although she was complaint and not doing anything to prevent officers from handcuffing her.

In PO Arias’s BWC (BR 10) at 1:02, he opens § 87(2)(b) passenger door and reaches inside while § 87(2)(b) is inside the vehicle. At 1:14, PO Arias closes the passenger door once § 87(2)(b) is removed from the vehicle.

In PO Cortes’s BWC (BR 08), at 1:11, while § 87(2)(b) is standing by the driver’s side door, PO Tobin tells her to get out of the vehicle. PO Tobin grabs her upper left arm and pulls her towards PO Vasquezadames, who is still pointing the Taser at her, and PO Garcia, who is holding a Taser. § 87(2)(b) yells not to touch her and asks why the officers are being rough as PO Tobin, PO Vasquezadames, and PO Garcia walk her to the front of her vehicle to handcuff her.

In PO Vasquezadames’s BWC (BR 05), at 1:22, § 87(2)(b) tenses her arms and pulls away from the officers.

PO Arias stated (BR 23) that he opened § 87(2)(b) passenger door and did not see any weapons in her vehicle. § 87(2)(b) was already out of the vehicle, but he did not know how she exited. He shut off the engine. PO Arias assisted with handcuffing § 87(2)(b) who was resisting by moving her arms while they were behind her back.

PO Tobin stated (BR 18) that he told § 87(2)(b) to step out of the vehicle while she was already outside because he wanted her to step away from the driver’s door. She did not move, so PO Tobin pulled her left arm to move her away from the doorway because he did not know what was in her vehicle and he wanted to remove her from that area before she could grab anything. In doing so, § 87(2)(b) collided with PO Vasquezadames, who was pointing the Taser at her, and PO Garcia, who was holding a Taser. PO Tobin and other officers walked § 87(2)(b) to the front of her car and handcuffed her, at which point she tensed her arms and body, moved around, and flailed her arms. PO Tobin did not need to use any force because he had a strong grip on her.

PO Vasquezadames stated (BR 19) that PO Tobin held § 87(2)(b) and she pulled her arm away from him, causing her to come towards PO Vasquezadames. He tried to grab her but she moved his hand away. PO Vasquezadames held her as she was handcuffed. He still held the Taser when § 87(2)(b) was handcuffed but was no longer pointing it at her. § 87(2)(b) placed her hands by her side and moved them around, rocked her body back and forth and said she did not want to be touched. PO Vasquezadames held her wrists and pulled her hands together.

PO Garcia stated (BR 20) that an officer pulled § 87(2)(b) arm to get her out of the frame of the door. § 87(2)(b) shifted her body and took a few steps away from the officers.

According to People v. Forbes, 283 A.D.2d 92 (BR 45), upon making a valid stop of a motor vehicle, the police officer may order the driver and all passengers out of the vehicle until the stop is concluded. The case also notes that during a lawful traffic stop, police officers may require the driver and all passengers to remain in the vehicle until the traffic stop is concluded.

Patrol Guide procedure 221-02 (BR 25) states that when a member of the service must gain compliance, control, or custody of an uncooperative subject, the member should comply with P.G. 221-01 and do the following: Take necessary action to protect life and personal safety of all persons present, including subjects being placed into custody and utilize de-escalation techniques when appropriate and consistent with personal safety, which may reduce or eliminate the need to use force, among other additional steps. Officers shall apply no more than the reasonable force necessary to gain control. The use of deadly force against a person can only be used to protect MOS and/or the public from imminent serious physical injury or death.

It was undisputed that § 87(2)(b) had been stopped for vandalizing a vehicle and that PO Tobin pulled § 87(2)(b) out of the doorway of her vehicle after repeatedly telling her to get out of the vehicle. § 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegation L** be closed as **Within NYPD Guidelines**.

Allegation (M) Force: Police Officer John Tobin used physical force against § 87(2)(b)

Allegation (N) Force: Officer John Tobin restricted § 87(2)(b) breathing.

§ 87(2)(b) stated (BR 16) that PO Tobin put one of his feet in between both of her feet and moved it around kicking her. She felt like he was trying to trip her.

In PO Tobin's BWC (BR 04) at 2:07, § 87(2)(b) is breathing heavily. Her breaths become deeper and shorter. At 2:30, § 87(2)(b) says she cannot breathe while standing up near her vehicle. PO Tobin is holding her left arm. No other officer is making contact. PO Tobin's BWC does not capture his feet at any point during the incident.

None of the officers' BWC captured PO Tobin's feet at any point during the incident (BR 02 - BR 15).

PO Tobin (BR 18) did not remember what § 87(2)(b) was doing with her feet while being handcuffed, but PO Tobin was standing still. He did not recall but did not think that he moved his feet around between her feet. He did not kick § 87(2)(b).

Sgt. Roscino and PO Tobin consistently stated (BR 17, BR 18) that § 87(2)(b) was breathing heavily. No one made any contact with her neck or throat area, or did anything that would restrict her breathing in any way.

§ 87(2)(g)

It is therefore recommended that **Allegations M** be closed as **Unable to Determine**.

§ 87(2)(g)

comprehensive BWC demonstrates that no officer made any type of contact with her that would have restricted her breathing. It is therefore recommended that **Allegation N** be **Unfounded**.

Allegation (O) Force: Police Officer Luis Vasquezadames used physical force against § 87(2)(b)

Allegation (P) Force: Police Officer Luis Vasquezadames tightly handcuffed § 87(2)(b)

Allegation (Q) Force: Police Officer Luis Vasquezadames used physical force against § 87(2)(b)

Allegation (R) Force: Police Officer Astrv Garcia used physical force against § 87(2)(b)

Allegation (S) Force: Police Officer John Tobin used physical force against § 87(2)(b)

§ 87(2)(b) stated (BR 16) that while PO Tobin was handcuffing her, he put his hand on the back of her head and slammed her head against the driver side window. The whole left side of her face came in contact with the window. His hand was on her head for approximately 10 to 15 seconds. She heard her tooth crack and then licked it and felt that her front left tooth was chipped. Her face was slightly red but it was not bruised. § 87(2)(b) screamed asking why he had to do that and that he chipped her tooth. PO Tobin said she should have been calm.

While PO Vasquezadames walked her to the police vehicle, he intentionally pressed his hand on the handcuffs, which tightened the handcuffs and hurt § 87(2)(b) wrists. There was no bruising but there was some redness. She told PO Vasquezadames to stop but he did not respond. § 87(2)(b) used her thumb to flick his finger off the handcuff. PO Vasquezadames asked her what she was doing and she responded that she asked him to stop and he did not. He did not continue to press on the handcuffs.

In PO Arias's BWC (BR 10) at 1:22, PO Arias handcuffs § 87(2)(b). He does not double lock the handcuffs.

In PO Vasquezadames's BWC (BR 05), at 2:57, while walking § 87(2)(b) to the police vehicle with PO Garcia, PO Vasquezadames moves his right hand from § 87(2)(b) upper left arm to the handcuff. At 3:01, § 87(2)(b) turns her head while walking and says that PO

Vasquezadames is pressing the handcuffs tighter as he is holding her by the handcuff. He responds that she is moving around. She continues to complain that he is tightening the handcuff.

In PO Garcia's BWC (BR 02) at 3:20, PO Vasquezadames places § 87(2)(b) against the vehicle as they walk up to the police vehicle. He repeatedly tells her to stop grabbing his hand. There is an unclear struggle where PO Vasquezadames is pulling his arm away or pulling on § 87(2)(b) arm. § 87(2)(b) is moving her upper body towards PO Garcia. PO Vasquezadames pushes § 87(2)(b) into the back of the police vehicle while telling her to put her hands behind her back. The officers walk her to the side of the police car. At 3:31, PO Garcia holds § 87(2)(b) lower arm against the side of the police vehicle, after which § 87(2)(b) says that the officers broke her tooth.

PO Tobin's BWC (BR 04) at 3:19 is consistent and provides a clearer depiction of officers struggling with § 87(2)(b) by the police vehicle.

In PO Keys's BWC (BR 09), at 3:24, PO Vasquezadames and PO Garcia push § 87(2)(b) into the back of the police vehicle while telling her to put her hands behind her back. § 87(2)(b) responds that they are and that the officers just want to be rough. She leans her body forward away from the officers. At 3:30, PO Tobin grabs § 87(2)(b) by the back of neck and pushes her head into the police vehicle. Her face makes contact with the police vehicle and § 87(2)(b) says that PO Tobin broke her tooth. PO Tobin responds to stop and continues to hold on to the back of her neck.

PO Arias stated (BR 23) that he did not recall if he double locked the handcuffs.

PO Vasquezadames stated (BR 19) that § 87(2)(b) refused to walk to the police vehicle by moving her arms away from officers and stating she did not want to go to the stationhouse. She eventually walked on her own. PO Vasquezadames held her by wrapping his arm around hers, but then held her by the handcuff and pulled her in closer towards him to gain more control and to have a stronger grip because § 87(2)(b) leaned forward, moved her arms away from him, and it was easier to hold her in front of him. He did not think the handcuffs tightened because he thought an officer double locked the handcuffs as it was standard procedure, but he did not observe an officer doing so. § 87(2)(b) complained of the handcuffs tightening, but PO Vasquezadames told her they were not.

At the police vehicle, § 87(2)(b) grabbed PO Vasquezadames's hand. PO Vasquezadames told her to stop, while withdrawing his arm away from her. § 87(2)(b) made contact with the police vehicle incidental to him trying to remove his hand. § 87(2)(b) tried to pull away from officers, so he grabbed her hand and pulled it behind her back to gain control. He did not intentionally push her against the police vehicle the second time. § 87(2)(b) moved her waist around, moved away from the officers, and swatted PO Vasquezadames' hand when PO Garcia searched her. PO Tobin held her by the back of the neck to control the situation and prevent her from moving. PO Vasquezadames held her in place against the vehicle by grabbing her wrists. He did not push her against the police vehicle.

PO Tobin stated (BR 18) that at the police vehicle, § 87(2)(b) was preventing PO Garcia from searching her pants pocket, so PO Tobin held her against the police vehicle. § 87(2)(b) moved side to side, flailed her arms, and moved her legs. PO Tobin placed his hands between the top of her shoulders and at the nape of the neck to control her upper body. § 87(2)(b) responded by saying that her tooth broke, but PO Tobin did not hear it break or crack. PO Tobin did not know if her mouth or face came into contact with the police vehicle, but he did not push her against it.

PO Garcia's statement (BR 20) was generally consistent with PO Vasquezadames and PO Tobin's. § 87(2)(b) said her handcuffs were tightening, but PO Garcia did not see PO Vasquezadames tighten the handcuffs. PO Garcia and PO Vasquezadames pushed § 87(2)(b) against the police vehicle because she was shifting her body side to side and moved her arms up along her back. § 87(2)(b) tried to grab PO Vasquezadames or PO Tobin's hand. PO Vasquezadames, PO Tobin, and PO Garcia pushed her against the police vehicle again so she

would stay still. PO Tobin held her by the back of the neck, which PO Garcia thought was not an appropriate place to hold her to gain control. PO Garcia did not see § 87(2)(b) tooth break.

PO Keys's statement (BR 21) was generally consistent with PO Vasquezadames and PO Tobin's. When PO Tobin pushed § 87(2)(b) against the vehicle, she was moving her arms and trying to reach for their hands. Her face and chest made contact with the police vehicle. § 87(2)(b) said PO Tobin broke her tooth, but PO Keys did not hear the tooth chipping.

Threat Resistance Injury report, #§ 87(2)(b) (BR 39) notes that officers wrestled and grappled with § 87(2)(b) causing her to lose her tooth. The narrative states that § 87(2)(b) grabbed PO Vasquezadames's right wrist while rear-cuffing her. PO Tobin placed his hand on § 87(2)(b) upper back and pushed her into the side of the police vehicle, with § 87(2)(b) subsequently stating that her tooth was chipped. Threat Resistance Injury report, § 87(2)(b) (BR 40) contains images of a minor chip at the bottom of her left front tooth.

Medical Treatment of Prisoner report, #§ 87(2)(b) (BR 43) states that § 87(2)(b) complained of pain in her right tooth but refused medical attention.

Patrol Guide procedure 221-01 (BR 24) states that force may be used when it is reasonable to ensure the safety of a member of the service or a third person, or otherwise protect life, or when it is reasonable to place a person in custody or to prevent escape from custody. Officers must consider the following factors when determining the reasonableness of the use of force: the nature and severity of the crime/circumstances; actions taken by the subject; duration of the action; immediacy of the perceived threat or harm to the subject, and/or bystanders; whether the subject is actively resisting custody; whether the subject is attempting to evade arrest by flight; number of subjects in comparison to the MOS; subject's violent history, if known; presence of hostile crowd or agitators; subject apparently under the influence of a stimulant/narcotic which would affect pain tolerance or increase the likelihood of violence. Drawing a firearm prematurely or unnecessarily limits a uniformed member's options in controlling a situation and may result in an unwarranted or accidental discharge of the firearm. The decision to display or draw a firearm should be based on an articulable belief that the potential for serious physical injury is present.

Patrol Guide procedure 221-02 (BR 25) states that when a member of the service must gain compliance, control, or custody of an uncooperative subject, the member should comply with P.G. 221-01 and do the following: Take necessary action to protect life and personal safety of all persons present, including subjects being placed into custody and utilize de-escalation techniques when appropriate and consistent with personal safety, which may reduce or eliminate the need to use force, among other additional steps. Officers shall apply no more than the reasonable force necessary to gain control. The use of deadly force against a person can only be used to protect MOS and/or the public from imminent serious physical injury or death.

It is undisputed that PO Vasquezadames held § 87(2)(b) by her handcuff while walking her to the police vehicle to overcome her resistance. § 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegations O and P** be closed as **Unable to Determine**.

It is undisputed that PO Vasquezadames and PO Garcia pushed § 87(2)(b) against the police vehicle twice. § 87(2)(g)

§ 87(2)(g) It is therefore recommended that **Allegations Q and R** be closed as **Within NYPD Guidelines**.

It is undisputed that PO Tobin pushed § 87(2)(b) against the police vehicle by the back of her neck. BWC demonstrates that § 87(2)(b) was moving around, preventing PO Garcia from searching her. However, there were four officers surrounding § 87(2)(b) and she was already restrained with handcuffs. § 87(2)(b) was not moving her head in a violent or threatening manner. § 87(2)(g)

§ 87(2)(g)

. It is therefore recommended that **Allegation S** be **Substantiated**.

§ 87(2)(g), § 87(4-b)

§ 87(2)(g), § 87(4-b)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (BR 36).
- PO Tobin has been a member of service for three years and has been a subject in five CCRB complaints and 14 allegations, none of which were substantiated. § 87(2)(g)

- PO Vasquezadames has been a member of service for three years, and this is the first CCRB complaint to which he has been a subject.
- PO Garcia has been a member of service for three years, and this is the first CCRB complaint to which she has been a subject.
- PO Villar has been a member of service for three years and has been a subject in one CCRB complaint and two allegations, neither of which were substantiated. § 87(2)(g)
- Sgt. Roscino has been a member of service for 17 years and has been a subject in two CCRB complaints and seven allegations, none of which were substantiated. § 87(2)(g)
- PO Cortes has been a member of service for two years, and this is the first CCRB complaint to which she has been a subject.
- PO Keys has been a member of service for two years and has been a subject in two CCRB complaints and three allegations, one of which was substantiated.
 - CCRB case 202304782 involved a substantiated allegation of a refusal to take a civilian complaint. The Board recommended formalized training and the NYPD imposed formalized training.
- PO Arias has been a member of service for three years, and this is the first CCRB complaint to which she has been a subject.
- PO Acebo has been a member of service for two years, and this is the first CCRB complaint to which she has been a subject.

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- As of February 1, 2024, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regard to this incident (BR 37).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

RPBP History

- This complaint did not contain any allegations of Racial Profiling/Bias-Based Policing.

Squad No.: 10

Investigator:	<u>Idan Falek</u>	<u>Inv. Falek</u>	<u>08/26/2024</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Maura R. Roche</u>	<u>IM Maura R. Roche</u>	<u>01/27/2025</u>
	Signature	Print Title & Name	Date

Reviewer:	<u></u>	<u></u>	<u></u>
	Signature	Print Title & Name	Date